

		faith.”] and Monex International, Ltd. v. Peinado (1990) 224 Cal.App.3d 1619, 1624–1625.) “A court must balance the necessity of penalizing frivolous conduct against the danger of chilling the diligent pursuit of lawsuits by an attorney for his or her client.” (Monex International, Ltd. v. Peinado (1990) 224 Cal.App.3d 1619, 1624.) “Nonetheless, where a trial court concludes a party’s motion has been brought in bad faith and is frivolous, and sufficient evidence supports that conclusion, the imposition of sanctions will be upheld on appeal.” (Id., 1624–1625.) “To this end, an attorney needs only a reasonable and honest belief in the viability of each theory and the evidence supporting that theory, not a conviction his client will prevail, to justify filing a claim or defense.” (Campbell v. Cal-Gard Sur. Services, Inc. (1998) 62 Cal.App.4th 563, 574–575.) As such, the Motion is DENIED. Plaintiff to give notice.
113	Slater Law Firm v. Shahram Manighalam, 2022-01290340	DEFENDANTS/CROSS-COMPLAINANTS MOTION FOR LEAVE TO FILE FIRST AMENDED CROSS-COMPLAINT – GRANTED Defendants/Cross-Complainants Shahram Manighalam and Shiri Manighalam’s seek leave to file a First Amended Cross-Complaint pursuant to Code of Civil Procedure §§473(a)(1) and 576 and California Rules of Court, rule 3.1324. The court may, “in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars....” (Code Civ. Proc., § 473, subd. (a).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading.” (Code Civ. Proc., § 576.) “[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter

		of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown.” (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Here, Cross-Complainants seek to plead additional causes of action including Professional Negligence (Legal Malpractice), Breach of Fiduciary Duty, Libel, and Slander, in addition to the existing causes of action for Breach of Contract and Fraud. This court denied without prejudice a prior motion for leave to amend because the supporting declaration did not fully comply with California Rules of Court, rule 3.1324(b) because it did not specifically state the effect of the amendment, why it was necessary and proper, and when the facts giving rise to the amended allegations were discovered. By denying the previous motion without prejudice, the court did not reject Plaintiff/Cross-Defendant’s arguments, which are properly raised again in response to the present motion. Plaintiffs/Cross-Defendants do not make any claim that they would be prejudiced by the amendment. While Cross-Defendants contend that amendment would be futile, that argument is best addressed by way of demurrer, motion for judgment on the pleadings or other appropriate proceedings. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 760.) Moving Parties to give notice.
114	Ying v. Xiong, 2024-01443462	Plaintiff Fu Ying’s motion to vacate the dismissal entered by this Court on April 6, 2026 is GRANTED pursuant to CCP §473(b), on the basis of attorney fault. Plaintiff is ordered to pay reasonable attorney’s fees of \$600 (2 hrs at \$300/hr) incurred by Defendant in traveling to and from and appearing at the trial call.